

PANCHAYATI RAJ

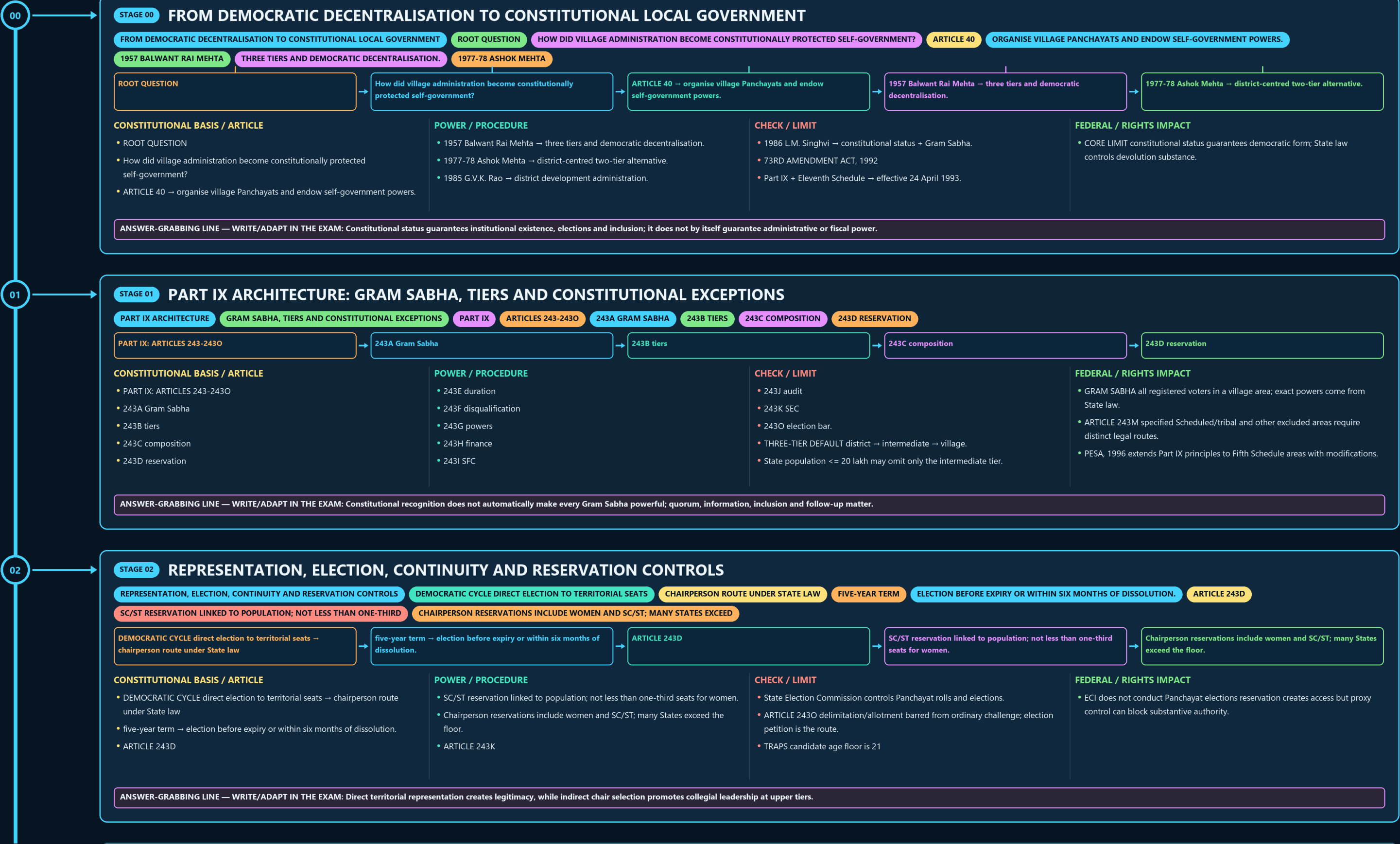
FROM DEMOCRATIC DECENTRALISATION TO → PART IX ARCHITECTURE: GRAM → REPRESENTATION, ELECTION, CONTINUITY AND → ARTICLE 243G, ELEVENTH SCHEDULE → FISCAL CONSTITUTION: OWN REVENUE → PESA, SCHEDULED AREAS AND

Read the thick cyan rail from Stage 00 to the final core synthesis. Each card uses a concept-appropriate structure; the grey E card is optional enrichment only and never repairs missing core content.

PRIMARY CORE FLOW SUBORDINATE EXTRA APPROVAL / REVIEW

Approval: FALSE • Pending user review • active generation g2 repaired in place for answer-line and visual-boundary quality • all prior artifacts unchanged

CORE BEFORE EXTRA • prior artefacts unchanged • exact same master drives poster and tiles



02

STAGE 02

REPRESENTATION, ELECTION, CONTINUITY AND RESERVATION CONTROLS

REPRESENTATION, ELECTION, CONTINUITY AND RESERVATION CONTROLS

DEMOCRATIC CYCLE DIRECT ELECTION TO TERRITORIAL SEATS

CHAIRPERSON ROUTE UNDER STATE LAW

FIVE-YEAR TERM

ELECTION BEFORE EXPIRY OR WITHIN SIX MONTHS OF DISSOLUTION.

ARTICLE 243D

SC/ST RESERVATION LINKED TO POPULATION; NOT LESS THAN ONE-THIRD

CHAIRPERSON RESERVATIONS INCLUDE WOMEN AND SC/ST; MANY STATES EXCEED

DEMOCRATIC CYCLE direct election to territorial seats → chairperson route under State law

five-year term → election before expiry or within six months of dissolution.

ARTICLE 243D

SC/ST reservation linked to population; not less than one-third seats for women.

Chairperson reservations include women and SC/ST; many States exceed the floor.

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

• DEMOCRATIC CYCLE direct election to territorial seats → chairperson route under State law

• five-year term → election before expiry or within six months of dissolution.

• ARTICLE 243D

• SC/ST reservation linked to population; not less than one-third seats for women.

• Chairperson reservations include women and SC/ST; many States exceed the floor.

• ARTICLE 243K

• State Election Commission controls Panchayat rolls and elections.

• ARTICLE 243O delimitation/allotment barred from ordinary challenge; election petition is the route.

• TRAPS candidate age floor is 21

• ECI does not conduct Panchayat elections reservation creates access but proxy control can block substantive authority.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Direct territorial representation creates legitimacy, while indirect chair selection promotes collegial leadership at upper tiers.

03

STAGE 03

ARTICLE 243G, ELEVENTH SCHEDULE AND THE THREE-F FUNCTIONALITY TEST

ARTICLE 243G, ELEVENTH SCHEDULE AND THE THREE-F FUNCTIONALITY TEST

ARTICLE 243G IS ENABLING

STATE LEGISLATURE MAY ENDOW PANCHAYATS WITH SELF-GOVERNMENT POWERS.

ELEVENTH SCHEDULE

29 MATTERS AGRICULTURE/LAND/WATER

RURAL INFRASTRUCTURE

POVERTY ALLEVIATION

COMMUNITY ASSETS.

ARTICLE 243G IS ENABLING

State legislature may endow Panchayats with self-government powers.

ELEVENTH SCHEDULE: 29 MATTERS agriculture/land/water → rural infrastructure → health/education

poverty alleviation → welfare → community assets.

FUNCTIONS clear activity map and tier responsibility.

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

• ARTICLE 243G IS ENABLING

• State legislature may endow Panchayats with self-government powers.

• ELEVENTH SCHEDULE: 29 MATTERS agriculture/land/water → rural infrastructure → health/education

• poverty alleviation → welfare → community assets.

• FUNCTIONS clear activity map and tier responsibility.

• FUNCTIONARIES staff placement, direction and accountability to the elected body.

• FINANCES own revenue + assigned revenue + predictable grants + spending discretion.

• FUNCTIONALITY TEST

• Can the Panchayat decide, direct staff, spend and answer publicly for outcomes?

• poverty alleviation → welfare → community assets.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 243G uses enabling language and does not automatically transfer all 29 subjects.

04

STAGE 04

FISCAL CONSTITUTION: OWN REVENUE, SFC, UNION GRANTS AND AUDIT

FISCAL CONSTITUTION

OWN REVENUE, SFC, UNION GRANTS AND AUDIT

ARTICLE 243H

STATE LAW MAY AUTHORISE TAXES/DUTIES/TOLLS/FEES, ASSIGNMENTS, GRANTS AND PANCHAYAT

OWN-SOURCE BASKET PROPERTY/MARKET LEVIES

LICENCE/SERVICE FEES

USER CHARGES

RENTS PONDS/FISHERIES/COMMUNITY ASSETS

ARTICLE 243H

State law may authorise taxes/duties/tolls/fees, assignments, grants and Panchayat Funds.

OWN-SOURCE BASKET property/market levies

licence/service fees

CONSTITUTIONAL BASIS / ARTICLE

POWER / PROCEDURE

CHECK / LIMIT

FEDERAL / RIGHTS IMPACT

• ARTICLE 243H

• State law may authorise taxes/duties/tolls/fees, assignments, grants and Panchayat Funds.

• OWN-SOURCE BASKET property/market levies

• licence/service fees

• user charges

• rents ponds/fisheries/community assets

• State-law borrowing.

• ARTICLE 243I

• Governor constitutes SFC every five years → tax sharing, assignments, grants and measures.

• ARTICLE 280

• Union Finance Commission recommends augmentation of State funds for Panchayats on the basis of SFC recommendations.

• Article 243J accounts/audit → public records → social audit → corrective action.

• LIMIT grants equalise capacity but cannot substitute for State tax devolution.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 280 links Union Finance Commission grants to augmentation of State funds for Panchayats, but central transfers supplement rather than replace State devolution and local revenue.

05

STAGE 05

PESA, SCHEDULED AREAS AND COMMUNITY-CENTRED DECISION VERBS

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FIFTH SCHEDULE AREA ORDINARY PART IX EXCLUSION UNDER ARTICLE

PESA, 1996 EXTENSION WITH MODIFICATIONS.

PESA GRAM SABHA COMMUNITY RESOURCES + CUSTOMS + CULTURAL

DECISION VERBS MUST STAY DISTINCT CONSULTATION

PRIOR RECOMMENDATION

LAND AND RESOURCES PREVENT ALIENATION + RESTORE UNLAWFULLY ALIENATED

FRA LINK FOREST-RIGHT RECOGNITION AND COMMUNITY FOREST-RESOURCE POWERS OVERLAP

FIFTH SCHEDULE AREA ordinary Part IX exclusion under Article 243M – PESA, 1996 extension with

ARTICLE 243H

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OWN-SOURCE BASKET property/market levies

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PESA GRAM SABHA community resources + customs + cultural identity + customary dispute practices.

DECISION VERBS MUST STAY DISTINCT consultation != recommendation != prior recommendation != approval.

LAND AND RESOURCES prevent alienation + restore unlawfully alienated land minor minerals and markets within

CONSTITUTIONAL BASIS / ARTICLE

FIFTH SCHEDULE AREA ordinary Part IX exclusion under Article 243M → PESA, 1996 extension with modifications.

PESA GRAM SABHA community resources + customs + cultural identity + customary dispute practices.

POWER / PROCEDURE

DECISION VERBS MUST STAY DISTINCT consultation != recommendation != prior recommendation != approval.

LAND AND RESOURCES prevent alienation + restore unlawfully alienated land minor minerals and markets within the exact statutory allocation.

CHECK / LIMIT

FRA LINK forest-right recognition and community forest-resource powers overlap but do not merge.

LIMIT PESA is not an unlimited veto over every project or every Scheduled Tribe area.

FEDERAL / RIGHTS IMPACT

FIFTH SCHEDULE AREA ordinary Part IX exclusion under Article 243M → PESA, 1996 extension with modifications.

PESA GRAM SABHA community resources + customs + cultural identity + customary dispute practices.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: PESA strengthens Gram Sabha authority in Fifth Schedule areas, but its distinct verbs of approval, consultation and recommendation do not create a universal veto.

06

STAGE 06

PLANNING, ACCOUNTABILITY, DIGITAL TOOLS AND JUDICIAL BOUNDARY

PLANNING, ACCOUNTABILITY, DIGITAL TOOLS AND JUDICIAL BOUNDARY

PLANNING CHAIN

GRAM SABHA PRIORITIES

INTERMEDIATE/DISTRICT CONVERGENCE

DPC CONSOLIDATES PANCHAYAT AND MUNICIPAL PLANS UNDER ARTICLE 243ZD.

ACCOUNTABILITY CHAIN NOTICE + RECORDS + QUORUM/INCLUSION

SOCIAL AUDIT

AUDIT TRAIL

Gram Sabha priorities – GPDP → intermediate/district convergence

DPC consolidates Panchayat and municipal plans under Article 243ZD.

ACCOUNTABILITY CHAIN notice + records + quorum/inclusion → social audit → audit trail → follow-up.

CONSTITUTIONAL BASIS / ARTICLE

PLANNING CHAIN

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POWER / PROCEDURE

ACCOUNTABILITY CHAIN notice + records + quorum/inclusion → social audit → audit trail → follow-up.

DIGITAL TOOLS eGramSwaraj planning/accounts

AuditOnline audit workflow

CHECK / LIMIT

SVAMITVA survey/property cards

RGSA capacity building.

CAUTION portal entry != lawful devolution, informed consent or service quality.

FEDERAL / RIGHTS IMPACT

JUDICIAL BOUNDARY

Gram Nyayalayas Act, 2008 courts != Gram Sabha or Panchayat institutions.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: District Planning Committees connect Panchayat plans with urban and district priorities, preventing local plans from becoming isolated lists of schemes.

07

STAGE 07

PANCHAYAT-MUNICIPALITY COMPARISON AND CONTROLLING LOCAL-BODY CASES

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PANCHAYATS MUNICIPALITIES

PART IX

ELEVENTH 29 PART IXA

TWELFTH 18

GRAM SABHA WARD COMMITTEE WHERE ARTICLE 243S APPLIES VILLAGE/INTERMEDIATE/DISTRICT

COMMON CONTROLS

SEC ELECTIONS

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
PANCHAYATS MUNICIPALITIES	Gram Sabha Ward Committee where Article 243S applies village/intermediate/district Nagar Panchayat/Council/Corporation	DPC planning bridge	K. Krishna Murthy (2010) → reservation requires local-body constitutional analysis.
Part IX	COMMON CONTROLS	State-law devolution.	Vikas Kishanrao Gawali (2021) → OBC-reservation triple test.
Eleventh 29 Part IXA	SEC elections	CASE CODE	State of Goa v. Fouziya Imtiaz Shaikh (2021) → independent SEC.
Twelfth 18	SFC fiscal review	Kishansing Tomar (2006) → timely local elections.	LIMIT cases regulate constitutional boundaries; they do not create one national local law.
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ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Article 243A makes the Gram Sabha the direct-democracy foundation of rural local government, while State law and PESA determine its operative power.

08

STAGE 08 IMPLEMENTATION GAPS, REFORM SEQUENCE, PYQ ROUTES AND FINAL SYNTHESIS

IMPLEMENTATION GAPS, REFORM SEQUENCE, PYQ ROUTES AND FINAL SYNTHESIS

DIAGNOSIS REGULAR ELECTIONS + REPRESENTATION GAINS BUT VAGUE ACTIVITY

REFORM SEQUENCE BINDING ACTIVITY MAP

ACCOUNTABLE LOCAL CADRE

PREDICTABLE UNTIED FINANCE

FAIR OWN-REVENUE REFORM

STRONG GRAM SABHA

AUDIT/SOCIAL AUDIT

DIAGNOSIS regular elections + representation gains but vague activity maps + departmental staff + weak

REFORM SEQUENCE binding activity map → accountable local cadre → predictable untied finance

fair own-revenue reform → strong Gram Sabha → audit/social audit

assisted digital access → outcome-based GPDP.

PYQ ROUTES finance beyond grants

CONSTITUTIONAL BASIS / ARTICLE	POWER / PROCEDURE	CHECK / LIMIT	FEDERAL / RIGHTS IMPACT
• DIAGNOSIS regular elections + representation gains but vague activity maps + departmental staff + weak own revenue + delayed SFCs. • REFORM SEQUENCE binding activity map → accountable local cadre → predictable untied finance • fair own-revenue reform → strong Gram Sabha → audit/social audit	• assisted digital access → outcome-based GPDP. • PYQ ROUTES finance beyond grants • women and patriarchy	• three Fs to functionality intermediate-tier exception • PESA limits. • MAINS SPINE define decentralisation → cite Part IX → explain mechanism → show gap	• named case/current anchor → State-variation qualification → functionality verdict. • SYNTHESIS representation becomes self-government only when authority, staff and money converge.

ANSWER-GRABBING LINE — WRITE/ADAPT IN THE EXAM: Panchayat reform must convert vague functions into enforceable activity maps, staff control, predictable finance and inclusive Gram Sabhas so constitutional status produces functional self-government.

E

EXTRA SUBORDINATE ENRICHMENT — ONLY AFTER THE COMPLETE CORE

OPTIONAL ADVANCED ENRICHMENT

PART A — EVOLUTION

PART B — 73RD AMENDMENT ACT, 1992

PART C — PESA ACT, 1996

LAXMIKANT FRAMES GRAM SABHA AS THE PARTICIPATORY-DEMOCRACY CORE OF

SEC 17 OF MGNREGA MANDATES GRAM SABHA MONITORING AND

SOCIAL AUDIT MEANS COMMUNITY VERIFICATION OF RECORDS, EXPENDITURE AND

MEGHALAYA ENACTED THE MEGHALAYA COMMUNITY PARTICIPATION AND PUBLIC SERVICES

OPTIONAL DOCTRINE / CASE

- PART A — EVOLUTION
- PART B — 73rd AMENDMENT ACT, 1992
- PART C — PESA ACT, 1996
- Laxmikant frames Gram Sabha as the participatory-democracy core of Panchayati Raj.

ADVANCED LIMIT

- Sec 17 of MGNREGA mandates Gram Sabha monitoring and regular social audits of works within the Gram Panchayat.
- CAUTION: Social audit means community verification of records, expenditure and outcomes — not merely departmental inspection.
- Meghalaya enacted the Meghalaya Community Participation and Public Services Social Audit Act, 2017, widely cited as the first state social-audit law.
- NOT: 73rd Amendment came into force in 1992 → passed 1992, in force 24 April 1993 .

COMPARATIVE NUANCE

- NOT: Eleventh Schedule has 29 items for municipalities → 29 for panchayats (Twelfth Schedule = 18 for
- NOT: All 3 tiers are compulsory for every state → a state < 20 lakh may skip the intermediate tier.
- NOT: Only village-level territorial seats are directly elected → territorial seats at all
- NOT: Minimum candidate age is 25 → 21 for panchayats.

OPTIONAL STATUS — This optional depth is unnecessary for a competent core answer; use it only for added nuance after the complete core has been written.